

24TRCV02774 24TRCV02774

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-06-30

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ING%2C5%2C06%2F30%2F2026

Source SHA-256: da8de00d9472444abaf9e04d13610194c2ecb498be5e306c113ac2b5f30c98c0

Case Number: 24TRCV02774 Hearing Date: June 30, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

JUAN MANUEL JIMENEZ

;

Plaintiff,

vs.

contemporary services

corporation

, et al.;

Defendants.

Case

No.:

24TRCV02774

Hearing

Date:

June
30, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT CONTEMPORARY SERVICES CORPORATION'S
DEMURRER TO PLAINTIFF JUAN MANUEL JIMENEZ'S SECOND AMENDED COMPLAINT

(2)

DEFENDANT CONTEMPORARY SERVICES CORPORATION'S
MOTION TO STRIKE PORTIONS OF PLAINTIFF JUAN MANUEL JIMENEZ'S SECOND AMENDED
COMPLAINT

(3)

PLAINTIFF JUAN MANUEL JIMENEZ' REQUEST FOR
LEAVE TO AMEND

MOVING PARTY: Defendant, Contemporary Services
Corporation

RESPONDING PARTY: Plaintiff, Juan
Manuel Jimenez

(1)

Defendant

Contemporary Services Corporation's Demurrer to Plaintiff Juan Manuel Jimenez'
Second Amended Complaint is OVERRULED with respect to the fourth cause of
action and SUSTAINED with respect to the fifth and sixth causes of action pursuant
to Code of Civil Procedure section 430.10.

(2)

Defendant

Contemporary Services Corporation's Motion
to Strike Portions of Plaintiff Juan Manuel Jimenez' Second Amended Complaint
is GRANTED pursuant to Code of Civil Procedure sections 435 and 436.

(3)

Plaintiff

Juan Manuel Jimenez is GRANTED twenty (20) days Leave to Amend.

The Court considers the moving
papers filed on April 24, 2026, the opposition briefs filed on June 16, 2026,
and the reply briefs filed on June 23, 2026.

BACKGROUND

Factual Background

On August 20, 2024, plaintiff
Juan Manuel Jimenez ("Plaintiff") filed the Complaint against the following
defendants: Stadco LA, LLC; Contemporary Services Corporation ("CSC");
Hollywood Park Land Company, LLC; Hollywood Park Management Company, LLC;
Pincay RE, LLC; Jason Gannon; and DOES 1 through 50. On March 18, 2025, Plaintiff filed the First
Amended Complaint ("FAC") against the same defendants, alleging two causes of
action: (1) General Negligence and (2) Intentional Tort. The second cause of action was asserted
against CSC and DOES 1 through 50.

On May 28, 2025, the Court
sustained CSC's demurrer to Plaintiff's second cause of action for intentional
tort and granted CSC's motion to strike the requests for punitive and exemplary
damages. (May 28, 2025 Minute Order, pp.
3, 6.) The Court granted Plaintiff leave
to amend this cause of action and the request for punitive and exemplary
damages. (May 28, 2025 Minute Order, p. 6.)

On June 13, 2025, Plaintiff
filed the Second Amended Complaint against the same defendants. In this complaint, Plaintiff asserted six
causes of action (1) Negligence; (2) Assault; (3) Battery; (4) Intentional
Infliction of Extreme Emotional Distress; (5) Civil Code § 51.7 (Ralph Act);
and (6) Civil Code § 52.1 (Bane Act). However,
on December 16, 2025, the Court struck out the second, third, fourth, fifth,
and sixth causes of action, which included allegations and claims for punitive

damages, after determining that it had not granted Plaintiff leave to include these new causes of action. (December 16, 2025 Minute Order, p. 5.)

On March 18, 2026, the Court granted Plaintiff leave to file the Second Amended Complaint ("SAC") with the new causes of action. (March 18, 2026 Minute Order, p. 5.) Subsequently, on March 23, 2026, Plaintiff filed the amended SAC against the following defendants: Contemporary Services Corporation ("CSC"); Hollywood Park Land Company, LLC; Hollywood Park Management Company, LLC; Pincay RE, LLC; Stadco LA, LLC; Alfred Anthony; Legends Hospitality LLC; and DOES 1 through 50. This amended complaint includes the following six causes of action: (1) General Negligence; (2) Battery; (3) Assault; (4) Intentional Infliction of Extreme Emotional Distress; (5) Civil Code § 51.7 (Ralph Act); and (6) Civil Code § 52.1 (Bane Act).

On April 22, 2026, CSC's counsel emailed a meet and confer letter to Plaintiff's counsel regarding the alleged deficiencies in the SAC.

(Declaration of Andrea J. Lee Sandoval ("Sandoval Decl."), ¶¶ 9-10, Exh. A.) On the same day, Plaintiff's counsel responded, stating that "Plaintiff declines to amend or withdraw any of the challenged causes of action or allegations" and provided their reasoning for this position. (Sandoval Decl., ¶¶ 11-12, Exh. B.) Consequently, the parties were unable to reach an agreement. (Sandoval Decl., ¶ 13.)

MEET AND CONFER REQUIREMENT

Before filing a demurrer or motion to strike, the moving party is required to meet and confer in person, by telephone, or via video conference with the party that filed the pleading that is subject to the motion to determine whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a), 435.5, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §§ 430.41, subd. (a)(2), 435.5, subd. (a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and

confer efforts. (Code Civ. Proc., §§ 430.41, subd. (a)(3), 435.5, subd. (a)(3).)

A determination by the court that the meet and confer process was inadequate shall not be grounds to overrule or sustain a demurrer, or to grant or deny a motion to strike. (Code Civil Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

On April 22, 2026, CSC's counsel emailed a meet and confer letter to Plaintiff's counsel regarding the alleged deficiencies in the SAC. (Sandoval Decl., ¶¶ 9-10, Exh. A.) On the same day, Plaintiff's counsel responded, stating that "Plaintiff declines to amend or withdraw any of the challenged causes of action or allegations" and provided their reasoning for this position. (Sandoval Decl., ¶¶ 11-12, Exh. B.) Consequently, the parties were unable to reach an agreement. (Sandoval Decl., ¶ 13.)

Accordingly, the Court finds that CSC sufficiently met and conferred with Plaintiff before filing the demurrer and motion to strike.

DEMURRER

Legal Standard

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing that the defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, “[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

Discussion

Fourth

Cause of Action – Intentional Infliction of Emotional Distress

CSC demurs to Plaintiff’s fourth cause of action for intentional infliction of emotional distress on the grounds that Plaintiff “fails to plead sufficient facts to support each essential element” of the claim. (Dem., p. 6:7-8.) The Court disagrees.

“A cause of action for intentional infliction of emotional distress exists when there is (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. [Citations.] A defendant’s conduct is outrageous when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. [Citation.] And the defendant’s conduct must be intended to inflict injury or engaged in with the realization that injury will result. [Citation.]” (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051, internal citations and quotations omitted.) “Under the respondeat superior doctrine, an employer is liable for the torts of its employees committed within the scope of employment.” (Crouch v. Trinity Christian Center of Santa Ana, Inc.(2019) 39 Cal.App.5th 995, 1011.)

Plaintiff maintains that while attending a football game with his girlfriend at SoFi Stadium, he used cash to purchase items from a concession stand. (SAC, ¶¶ 90-99, 101.) The cashier, however, declined to provide the

items or return the cash. (SAC, ¶ 100.) Following this, a security guard approached and “[w]ithout speaking to Plaintiff, asking any questions, or making any effort to understand the situation, the security guard suddenly and violently picked Plaintiff up and body slammed him to the ground without provocation or justification.” (SAC, ¶¶ 104-105.) Plaintiff asserts that “Defendants intended to cause Plaintiff severe emotional distress, or acted with reckless disregard of the probability that Plaintiff would suffer such distress. The nature of the conduct—sudden, violent, and unprovoked—was likely to cause trauma in any reasonable person. ¶ As a direct and proximate result of the conduct described above, Plaintiff suffered severe emotional distress, including but not limited to anxiety, trauma, humiliation, emotional anguish, and fear for his physical safety.” (SAC, ¶¶ 104-105, 108-109.)

CSC contends that “Plaintiff does not plead sufficient facts to show that the Doe’s security guard’s conduct was so extreme and outrageous as to exceed all bounds of that usually tolerated in a civilized community.” (Dem., p. 7:4-6.)

According to Plaintiff’s allegations, he was forcibly taken and slammed onto the ground by the security guard without warning or apparent justification. Such actions may be regarded by reasonable individuals as exceedingly outrageous and outside the bounds of societal tolerance.

The factual allegations further indicate that the security guard engaged in behavior with the realization that it would likely result in extreme emotional distress. As Plaintiff asserts, “The nature of the conduct—sudden, violent, and unprovoked—was likely to cause trauma in any reasonable person.” (SAC, ¶ 108.) The Court concurs that body slamming an individual in front of witnesses is likely to result in significant emotional distress.

CSC additionally argues that “Plaintiff fails to plead sufficient facts in the SAC that support Plaintiff’s contention that he suffered severe emotional distress[.]” claiming that “emotional distress secondary to Plaintiff’s alleged physical injuries is insufficient to support a cause of action for IIED.” (Dem., p. 7:17-19.) Nevertheless, CSC does not provide any case law or statutes to substantiate this argument, rendering it unconvincing.

As such CSC's demurrer to the fourth cause of action for intentional infliction of emotional distress is OVERRULED.

Fifth

Cause of Action – Civil Code § 51.7 (Ralph Act)

CSC demurs to Plaintiff's fifth

cause of action for Civil Code section 51.7 (Ralph Act) on two primary grounds:

(1) Plaintiff "fails to plead sufficient facts to support each essential element"

of the claim, and (2) the claim is barred by the statute of limitations. (Dem., pp. 7:25-26, 10:19-12:1.) The Court agrees with the first argument and

does not address the statute of limitations issue.

"Section 51.7 of the Ralph Act

provides that all persons within California have the right to be free from any violence, or intimidation by threat of violence, committed against the person on account of [their protected characteristic].

[Citation.] The elements of a

Ralph Act claim are: (1) the defendant threatened or committed violent acts against the plaintiff; (2) the defendant was motivated by his perception of plaintiff's [protected characteristic]; (3) the plaintiff was harmed; and (4) the defendant's conduct was a substantial factor in causing the plaintiff's harm. [Citation.]" (Estate of Nunis by and through Nunis v.

City of Chula Vista (S.D.Cal 2023) 676 F.Supp.3d 867, 876, internal citations and quotations omitted; see Civ. Code, § 51.7, subd. (b)(1).)

Plaintiff contends that after

the cashier declined to provide the requested items or return the cash, the cashier "insulted Plaintiff's girlfriend using derogatory and offensive language, and explicitly threatened to physically harm both Plaintiff and his girlfriend." (SAC, ¶¶ 122, 124.) Plaintiff asserts that "a substantial motivating reason for the cashier's hostility and threats was Plaintiff's ethnicity. The cashier perceived Plaintiff to be Latino and acted with discriminatory intent in both refusing service and issuing threats." (SAC, ¶ 125.)

Furthermore, Plaintiff claims

that "a substantial motivating reason for the security guard's violent conduct was Plaintiff's race and/or perceived ethnicity. The security guard perceived Plaintiff to be Latino and, acting with discriminatory animus, used unjustified force against

him. The body slam was not a measured or proportional response, but rather an act of aggression that reflected racial bias and a conscious disregard for Plaintiff's safety and dignity." (SAC, ¶ 131.) Plaintiff additionally contends that "the security guard's use of force was not merely reactive or procedural, but was influenced by the cashier's inflammatory statements and rooted in discriminatory assumptions about Plaintiff's background." (SAC, ¶ 128.)

Nevertheless, as asserted by CSC, these allegations fail to demonstrate that "Defendants' actions were motivated by the perception of Plaintiff's protected characteristic." (Dem., p. 8:9-10.) Broadly read, there are no factual allegations showing that the cashier or the guard acted out of racial bigotry. Plaintiff's assertion that their actions were racially motivated is conclusory and lacks factual support. While Plaintiff claims that "[m]otive and intent may be alleged generally[.]" they provide no case law or statute to substantiate this claim. (Opp., p. 7:15.) Moreover, the requirement for factual allegations to support conclusory claims is not merely "an evidentiary challenge[.]" as Plaintiff suggests. (Opp., p. 7:16-17.) Instead, it is a pleading standard that Plaintiff must meet.

As such, CSC's demurrer to the fifth cause of action for Civil Code section 51.7 (Ralph Act) is SUSTAINED.

Sixth

Cause of Action – Civil Code § 52.1 (Bane Act)

CSC demurs to Plaintiff's sixth cause of action for Civil Code section 52.1 (Bane Act) on two primary grounds:

(1) Plaintiff "fails to plead sufficient facts to support each essential element" of the claim, and (2) the claim is barred by the statute of limitations. (Dem., pp. 9:7-8, 10:19-12:1.) The Court agrees with the first argument and does not address the statute of limitations issue.

The elements of a cause of action for violations of the Bane Civil Rights Act are: (1) the defendant's actual, or attempted, threats, intimidation, or coercion; (2) interference with the plaintiff's exercise or enjoyment of a constitutional or statutory right; (3) by threatening, or committing, violent acts; (4) the plaintiff reasonably believed that defendant would commit violence against the plaintiff or the plaintiff's property if the plaintiff exercised a constitutional or statutory

right; (5) the defendant injured plaintiff or plaintiff's property to prevent plaintiff from exercising a constitutional or statutory right, or to retaliate against plaintiff's exercise of such rights; (6) the plaintiff was harmed; and (7) the defendant's conduct was a substantial factor in causing that harm. (Austin B v. Escondido Union School Dist. (2007) 149 Cal.App.4th 860, 882 (Austin); see Civ. Code, § 51.7, subd. (b)(1).)

"The essence of a Bane Act claim is that the defendant, by the specified improper means (i.e., 'threats, intimidation or coercion') tried to or did prevent the plaintiff from doing something her or she had the right to do under the law or to force the plaintiff to do something that he or she was not required to do under the law." (Id. at p. 883.)

CSC asserts that "Plaintiff again fails to allege any facts showing Defendants intended to act unlawfully in their conduct involving Plaintiff and thus, Plaintiff does not plead sufficient facts or any facts at all to support the contention that Defendants acted with specific intent to deprive Plaintiff of his constitutional rights." (Reply, p. 5:18-21.) The Court agrees. Although Plaintiff characterizes the security guard's actions as "an intentional act of violence committed in a manner that interfered with and sought to intimidate Plaintiff in the exercise of his constitutional and statutory rights—including his rights to personal safety, bodily integrity, freedom of movement, and to be free from excessive force under the laws and Constitution of the State of California and the United States[.]" the factual allegations do not indicate that the security guard inflicted harm upon Plaintiff with the intent to violate his constitutional or statutory rights or to retaliate against his exercise of such rights. (SAC, ¶ 148.) Inflicting harm upon an individual does not inherently imply that such harm was executed to infringe upon a right.

As such, CSC's demurrer to the sixth cause of action for Civil Code section 52.1 (Bane Act) is SUSTAINED.

MOTION TO
STRIKE

Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to

strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].) The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Discussion

CSC seeks to strike the claims, allegations, and requests for punitive damages, attorneys’ fees, and civil or statutory penalties. (MTS, p. 2:1-25.)

Punitive Damages

Punitive damages may be imposed where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) A motion to strike punitive damages is properly granted when a plaintiff does not state a prima facie claim for punitive damages. (*Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63.)

“Malice” is conduct intended by the defendant to cause injury to the plaintiff or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1).) “Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff’s rights, a level which decent citizens should not have to tolerate.” [Citation.]” (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1210.)

“As amended to include [despicable], the [Civil Code section 3294] plainly indicates that absent an intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests. The additional component of ‘despicable conduct’ must be found.” (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) The statute’s reference to despicable conduct represents a “new substantive limitation on punitive damage awards.” (Ibid.) Despicable conduct is “conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. Such conduct has been described as ‘having the character of outrage frequently associated with crime.’” (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1287.) Further, “[t]here must be evidence that defendant acted with knowledge of the probable dangerous consequences to plaintiff’s interests and deliberately failed to avoid these consequences.” (Flyer’s Body Shop Profit Sharing Plan v. Ticor Title Ins. Co. (1986) 185 Cal.App.3d 1149, 1155.)

“Oppression” means “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code, § 3294, subd. (c)(2).)

“Fraud” means “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294, subd. (c)(3).)

“An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294, subd. (b), emphasis added.) Consequently, Civil Code section 3294, subdivision (b), establishes that an employer may be held liable for punitive damages through three distinct pathways: (1) advance knowledge of the employee’s unfitness combined with conscious disregard; (2) authorization or ratification

of the wrongful conduct; or (3) personal guilt of oppression, fraud, or malice by an officer, director, or managing agent.

Given that CSC functions as a corporate entity, the provisions outlined in Civil Code section 3294, subdivision (b), are applicable.

Plaintiff initially seeks to

establish that CSC ratified the conduct of its security personnel. (Opp., pp. 3:23-5:2.) Plaintiff alleges the following: "Plaintiff is informed and believes, and thereon alleges, that prior to the incident, [CSC]

had received complaints and/or

was otherwise placed on notice that the subject security guard, or other security personnel under its supervision, had engaged in prior acts of aggression, excessive force, or unjustified physical confrontations with patrons. Despite this knowledge, CSC

failed to investigate, discipline, retrain, or terminate the involved employee(s), and permitted said conduct to continue unchecked." (SAC, ¶ 74.)

"Plaintiff is informed and believes, and thereon alleges, that one or more officer, director, or managing agent, of [CSC] held the authority to formulate, implement, or enforce corporate policies relating to security guard training, supervision, and use-of-force. Said individuals were managing agents within the meaning of Civil Code §3294(b), and had actual knowledge of prior misconduct, yet ratified the violent and malicious conduct that ultimately injured Plaintiff." (SAC, ¶ 75.) "CSC further failed to implement or enforce adequate policies governing the use of force by its employees, and knowingly permitted a pattern or practice of excessive force by security personnel to continue. This conduct was ratified or

deliberately ignored by managing personnel who exercised substantial authority over safety-related policy and training decisions." (SAC, ¶ 76.)

"Plaintiff is informed and believes, and thereon alleges, that one or more officers, directors, or managing agents of [CSC] had actual knowledge of prior similar misconduct by the subject security guard or by other employees under their supervision, and nonetheless ratified, approved, or consciously disregarded the subject conduct. These individuals exercised substantial discretionary authority over significant aspects of the company's operations, including but not limited to employee supervision, use-of-force policy, hiring, discipline, and training, such that they qualified as 'managing agents.' " (SAC, ¶ 78.)

The Court finds these

allegations insufficient as they lack substantive factual allegations and

appear to be a recitation of the statutory language.

Subsequently, Plaintiff

contends that CSC possessed advance knowledge of the security guard's lack of fitness. Plaintiff asserts, "On information and belief, the guard lacked proper licensing and/or training to perform security functions at a large-scale public venue such as SoFi Stadium. Defendants failed to exercise reasonable care in hiring, training, supervising, and retaining the security guard." (SAC, ¶ 36.)

The Court deems this assertion

insufficient, as it does not adequately demonstrate any advance awareness of the security guard's unfitness and is presented without supporting factual allegations.

As such, CSC's request to strike Plaintiff's claims for punitive and exemplary damages are GRANTED.

Civil/Statutory Penalties

The Court agrees to strike any

requests for attorneys' fees and for civil or statutory penalties, as it has sustained CSC's demurrer as to the fifth and sixth causes of action for the Ralph and Bane Acts. Plaintiff has sought these fees and penalties under the above-mentioned causes of action. (SAC, ¶¶ 141, 154.) Additionally, Plaintiff recognizes that if these claims were to survive, "the remedies they authorize survive with them, and there is nothing improper or irrelevant to strike." (Opp., p. 6:17-18.) Thus, Plaintiff's claims for attorneys' fees and civil or statutory penalties cannot proceed.

As such, CSC's request to strike Plaintiff's claims for attorneys' fees and civil or statutory penalties is GRANTED.

ORDERS

1)

Defendant Contemporary Services Corporation's Demurrer to Plaintiff Juan Manuel Jimenez' Second Amended Complaint is OVERRULED with respect to the fourth cause of action and SUSTAINED with respect to the fifth and sixth causes of action.

2)

Defendants' Contemporary Services Corporation's
Motion to Strike Portions of Plaintiff Juan Manuel Jimenez' Second Amended
Complaint is GRANTED.

3)

Plaintiff

Juan Manuel Jimenez' is GRANTED twenty (20) days Leave to Amend.

4)

CSC is ordered to give notice of this Court's
ruling.

IT IS SO ORDERED.

DATED: June 30, 2026

Tamara

Hall

Judge

of the Superior Court